

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,
Plaintiff,

v.
MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

**PLAINTIFF'S OPPOSITION TO THE
CORPORATE DEFENDANTS' JOINT
MOTION TO DISMISS**

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I. INTRODUCTION

1. The Corporate Defendants, five separately represented entities, move jointly to dismiss all eighteen counts of the Third Amended Complaint, with prejudice, in a forty-eight-page memorandum whose forty-five-page argument section addresses each count on its merits, count by count and frequently defendant by defendant. That brief is the answer to its own threshold premise. A pleading that will support forty-five pages of organized, count-specific merits argument by five sets of sophisticated counsel is a pleading that gave fair notice of the claims against them. The motion cannot simultaneously be able to parse the Complaint this finely and be entitled to dismissal on the ground that the Complaint cannot be parsed at all.

2. The motion rests, count after count, on a single move: it declines to read the exhibits the Complaint incorporates, and then asserts that what those exhibits contain is missing. The motion

says so in its own words: that the Court and the Defendants have "no duty to sift" the attached materials, that two of the incorporated documents are "improperly" before the Court, and that a keyword search "yield[s] no hits." ECF 70-1 at 3, 22 n.16, 25 n.20. From that premise the brief repeatedly asserts an absence of allegation ("never identifies a single communication," "does not identify any specific model, product, or feature," "uncorroborated") where the incorporated record supplies exactly the identification demanded. Under Federal Rule of Civil Procedure 10(c), those exhibits are part of the pleading "for all purposes." The motion's method is not a defect in the Complaint; it is a choice by the movants, and it is the reason the brief perceives gaps that the record fills.

3. The parties asking the Court to dismiss a *pro se* plaintiff's pleading as too long and too unintelligible to answer are five separately represented corporate defendants, moving jointly, and the federal defendants, represented in the companion motion by the United States Department of Justice. The law relaxes its demands for an unrepresented party precisely because he litigates without the professional resources these Defendants command. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007). The misstatements of law in this briefing, however, are the movants', not the plaintiffs': a Supreme Court decision that *broadened* fraud liability, cited with invented language to narrow it (§ V.C, *infra*); a line of frivolousness authorities whose own limiting principle ("the irrational or the wholly incredible") describes the opposite of this record (§ IV, *infra*); a characterization of the pleadings the cited paragraphs nowhere contain (§ IV, *infra*); a description of these Defendants as "unrelated" that the movants' own memorandum refutes (§ IV, *infra*); a summary-judgment decision recast as a rule about complaint exhibits (§ II, *infra*); and two distinct memoranda collapsed into one to defeat an allegation made about only one of them (§ V.A, *infra*). The *pro se* plaintiff identified each, corrected it against its source, and in more

than one instance turned the misused authority to the opposite conclusion. Each party answers for what it places before the Court: the plaintiff for his pleading, the Defendants for their motion. The Defendants would hold the unrepresented party to a standard of precision their own motion did not meet; the pleading of the party who read these authorities more carefully than the party that cited them is not the one that should be dismissed for want of care.

4. Plaintiff does not defend every count uniformly, and says so at the outset. Where a count rests on a legal precondition the record cannot cure, Plaintiff concedes it candidly and narrowly: Count VIII (copyright) is conceded for want of the Section 411(a) registration precondition, but without prejudice, and with correction of the movants' legal error in seeking dismissal with prejudice; and Count XIV (California Consumer Privacy Act) is conceded on the statute's residency text, with the underlying conduct preserved in Counts IX, X, XII, and XIII. Those concessions are offered in the same spirit of textual precision the movants demand, and they frame the balance of this opposition: the remaining sixteen counts are pleaded, supported by an incorporated forensic record and, measured against the Rule 12(b)(6) plausibility standard the movants themselves invoke, sufficient to proceed. This opposition first establishes the incorporation principle that governs the entire motion (§ II), then the cross-motion tension that disposes of its threshold framing (§ III) and the jurisdictional "insubstantiality" argument (§ IV), answers each count in turn (§ V), addresses the improper-group-pleading argument (§ VI), and closes with the movants' unwarranted request for dismissal with prejudice (§ VII).

II. THE EXHIBITS ARE PART OF THE PLEADING

A. Rule 10(c) Makes the Exhibits Part of the Pleading

5. The governing rule is not discretionary. Federal Rule of Civil Procedure 10(c) provides: "A copy of a written instrument that is an exhibit to a pleading is a part of the pleading

for all purposes." On a Rule 12(b)(6) motion the Court considers not only the allegations of the complaint but "any documents either attached to or incorporated in the complaint and matters of which [the court] may take judicial notice." *EEOC v. St. Francis Xavier Parochial Sch.*, 117 F.3d 621, 624 (D.C. Cir. 1997). Incorporation by reference thus brings the referenced materials before the Court and may itself amplify the pleading. *Banneker Ventures, LLC v. Graham*, 798 F.3d 1119, 1133 (D.C. Cir. 2015). The Third Amended Complaint expressly incorporates its appendices and exhibits, which include the forensic source-code analyses, the network-capture record, and the code-transmission captures on which the substantive counts rest. Those materials are, by Rule 10(c)'s plain terms, before the Court on this motion.

B. The Motion's Method Is To Decline To Read Them

6. The movants do not dispute that the exhibits exist or that the Complaint incorporates them. They decline to read them, and they say so. The brief invokes a line of authority for the proposition that a court is not obligated to "sift through hundreds of pages" of attachments to locate the support for a claim. ECF 70-1 at 3 (citing *Bain v. Office of Attorney General*, 648 F. Supp. 3d 19; *Twist v. Meese*, 854 F.2d 1421; and *Khan v. U.S. Dep't of Homeland Sec.*, 2023 WL 6215359). It characterizes two incorporated documents as improperly before the Court. *Id.* at 22 n.16. And it represents that a keyword search of the pleading "yield[s] no hits" on a matter the Complaint in fact addresses. *Id.* at 25 n.20. In the same breath, the motion asks the Court to take judicial notice of two extrinsic advocacy web pages that appear nowhere in the pleadings. *Id.* at 28 n.22. The movants' posture toward the record is thus selective: the incorporated exhibits are too burdensome to read, while extrinsic materials favorable to them are pressed on the Court.

7. The authority the movants invoke does not do the work they ask of it. Those cases hold that a court is not *obligated* to hunt, unaided, through voluminous and unindexed attachments to

construct a plaintiff's claim for him; they do not hold that incorporated exhibits cease to be part of the pleading, and they cannot, because Rule 10(c) says the opposite. The concern animating that line of cases, a court left to guess which of hundreds of undifferentiated pages supports which allegation, is absent here. This opposition supplies, for each count, the precise locus within the incorporated record that answers the motion's asserted gap: the specific finding, the source-code file and line, the network-capture exhibit.

8. Examined individually, the three decisions the motion strings together for that proposition confirm the distinction rather than close it. *Twist v. Meese* was not a pleadings case: the "sift through hundreds of pages" language arose on summary judgment and described "hundreds of pages of depositions, affidavits, and interrogatories," not exhibits incorporated into a complaint. 854 F.2d 1421, 1425 (D.C. Cir. 1988). The motion's parenthetical, that the court "was not obligated to consider thousands of pages of exhibits attached to a complaint," describes a holding *Twist* did not render, in an appeal involving no complaint exhibits at all. *Bain v. Office of Attorney General*, the source of the quoted phrase, cuts the other way: the court there "consider[ed] all of [the pro se plaintiff's] exhibits—and not merely her complaint—in evaluating the pending motion to dismiss," withholding that forbearance only where the complaint "refer[red] generally to an exhibit . . . without including any citation to a specific page," and then only as to a plaintiff who was herself a lawyer; the claims it dismissed fell on administrative-exhaustion grounds having nothing to do with exhibit volume. 648 F. Supp. 3d 19, 20 (D.D.C. 2022). *Khan v. U.S. Dep't of Homeland Sec.* declined to "scour through the 212 pages" of attachments only because the complaint's counts identified no particular request and no particular defendant. 2023 WL 6215359 (D.D.C. Sept. 25, 2023). The vice common to all three is one: volume tendered as a substitute for specific, pinpointed allegation, leaving the court to build the

claim itself. It is the opposite of this record, in which the Complaint and this opposition identify, for every count, the precise finding, the source-code file and line, and the capture exhibit.

9. A second feature of this record removes the "sift" authorities entirely, and it concerns what the incorporated exhibits are. In each case the motion cites, the materials the court declined to mine were the litigant's own submissions: administrative filings, correspondence, a summary-judgment record. The exhibits at the center of this Complaint are the movants' own: Exhibits E, F, and G are line-by-line analyses of Anthropic's, Apple's, and OpenAI's own source code, and the B-series documents METR's own corporate structure and history. A defendant does not "sift" through its own code; it reads it. The forensic exhibits, moreover, have already done the isolating work: out of tens of thousands of lines they identify, by file and line, the specific operative functions: the hardcoded third-party telemetry endpoint, the build-time definition that produces the two-tier product, the session-ingress logging call that transmits each message. Reading one's own product, narrowed to the controlling lines by the party who located them, is not the unaided search of a stranger's papers that the "sift" cases were written to excuse.

10. A motion to dismiss tests the complaint as pleaded, and Rule 10(c) makes the incorporated exhibits part of the very pleading the motion attacks (§ II.A, *supra*); they are not extrinsic materials the movants may decline to consider. The motion nonetheless claims a license not to read them, asserting that the Court should not be required to "hunt through" the incorporated memoranda, ECF 70-1 at 25 n.20, and resting its no-factual-support refrain on a keyword search rather than the exhibits' contents. No such license exists. A movant may not excise part of the pleading it challenges and then assert the absence of what the excised part supplies. The authority the motion claims, a right to decline to read the incorporated pleading, is not a defect in the Complaint; it is a defect in the motion.

C. Asserted Absence Where the Record Supplies Presence

11. Because the motion does not read the incorporated record, it repeatedly asserts that the record contains nothing — and is repeatedly wrong. The brief states that Plaintiff "never identifies a single communication whose contents [were] captured" (ECF 70-1 at 31); the incorporated forensic record identifies every such communication, down to the transmitting source-code function and the captured payload (§ V.I, *infra*). It states that Plaintiff "does not identify any specific model, product, or feature" (*id.* at 20); the record identifies the specific build-time mechanism, by file and line, that produces the two-tier product (§§ V.A, V.N, *infra*). It dismisses Plaintiff's forensic method as "uncorroborated" (*id.* at 8) when the corroboration is the exhibit set the motion declined to open. Each of these is not a hole in the Complaint but an artifact of the movants' chosen method, catalogued here and answered at the count level below.

D. The Method, in Two Verifiable Instances

12. Two instances make the method checkable. The first is an absolute claim about the pleading itself. As to Apple, the motion states that "other than the initial statement alleging that Apple's 'Floodgate Proxy' intercepted data, there is not a single fact pled regarding Apple's intent, motive, liability, or capture of content." ECF 70-1 at 31. The Complaint's Apple party allegation pleads, in Apple's own quoted words, that Apple "injects hidden deception instructions into AI communications including verbatim commands: 'may not EVER disclose to the user that you have seen it.'" TAC ¶ 34; *see also* TAC ¶ 91 (same command, appearing four times per conversation, disguised as tool_result messages); § V.I ¶ 58, *infra*. That allegation sits in the Complaint's parties section, not in an exhibit, so no hunt through any appendix was required to find it. And the "capture of content" the motion calls unpleaded is documented twice over, in Apple's own daemon and on the wire. A 391-megabyte forensic extraction of Apple's iCloud

synchronization daemon (bird) indexes files leaving Plaintiff's machine under obfuscated names that retain the first character, the last character, the exact character count, and the extension: d{13}e.py, a{22}n.py, and v{20}y.py, at 2,950, 7,318, and 17,757 bytes. Ex. F-2 § G. Those parameters identify each file uniquely, and the same files appear in the contemporaneous API capture in cleartext, contents and all. Ex. F-17. That is not anonymous analytics. It is Plaintiff's source code, transmitted under names engineered to preserve identification while appearing anonymized. The second instance is footnote 20. Faulting Plaintiff's reference to the Minnesota Attorney General's February 26, 2026 denial, the motion reports that "[a] keyword search for 'Minnesota Attorney General' and 'February 26' yield[s] no hits," with "[t]he only instance of the word 'Minnesota' aris[ing] in the Table of Authorities." ECF 70-1 at 25 & n.20. The denial is pleaded, dated, and quoted verbatim in the body of the Complaint at Paragraph 44 ("the Minnesota Legislature . . . did not delegate any such authority to this Office"), and recited again at Paragraph 268, the paragraph the motion itself block-quotes on the same page as its footnote. TAC ¶¶ 44, 268; App. A ¶ 112; Ex. J-1. Plaintiff acknowledges that Paragraph 268's parenthetical "(discussed at Memo A)" is a mis-pointer, which is why the movants' search of Memo A returned nothing; but the mislabel does not save the representation, because the movants reproduced in their own brief, on the same page as their "no hits" footnote, a paragraph containing both search terms.

E. The Motion Contests Sufficiency, Not the Verifiable Predicate

13. What the motion does with the record confirms the point. Its central factual predicate, that Defendant Anthropic's own source code hardcodes a third-party telemetry pipeline that transmits per-user identifiers and the user's own network-failure signatures, is independently verifiable in minutes from Anthropic's own publicly released source, as § IV explains and as

Plaintiff's filed protocol demonstrates step by step. *See* Pl.'s Independent Verification Protocol, ECF No. 57-1. Faced with that predicate, the movants (five of the most sophisticated technology and litigation defendants in the country, with every incentive and every capability to rebut a false technical claim in a sentence) do not deny it. They apply labels to it: "conclusory," "uncorroborated" (ECF 70-1 at 8, 14), "patently insubstantial." But a label is not a denial, and verifiability is the answer to the label: a predicate that any reader can confirm from the movants' own code is neither conclusory nor uncorroborated nor insubstantial, whatever it is called. The protocol resolves the question in either direction: facilitation and verification establish the predicate; evaluation and falsification defeat it. No Defendant has undertaken either.

14. The vocabulary the motion deploys against this record ("conclusory," "uncorroborated" (ECF 70-1 at 8, 14), "patently insubstantial") trades on the conflation of two questions the Federal Rules of Evidence keep separate by design. Authentication asks whether an item of evidence "is what the proponent claims it is." Fed. R. Evid. 901(a). It is a question about the artifact, answered by examining the thing itself, at a deliberately low threshold. Credibility asks whether a source should be believed. Fed. R. Evid. 607. It is a question about a witness, committed to the fact-finder, going to weight and never to existence. Fed. R. Evid. 104(e). Different objects; different stages; different deciders. And for the class of evidence this Complaint is built from, the Rules resolve even the first question mechanically: records "generated by an electronic process or system that produces an accurate result" and data "authenticated by a process of digital identification" are self-authenticating. Fed. R. Evid. 902(13), (14). Genuineness there is a checksum, not a character reference. The Complaint's central artifacts are of exactly that class: the defendants' own published source code and packet captures fixed by SHA-256 manifest, verifiable in minutes by any reader (§ 13, *supra*; ECF No.

57-1). At Rule 12 there is no work left for credibility to do: the well-pleaded facts are assumed true, and the artifacts are what they claim to be by hash and by the defendants' own publication, which no movant disputes. The motion's labels are therefore credibility-register words performing an authenticity-register job — an invitation to resolve against the pleader, at the threshold, the one question the Rules reserve to the jury after admission. The frivolousness screen the motion invokes polices the opposite record: inferences "of uncertain origins," with no anchor a stranger can examine (§ 23, *infra*). And the invitation has a pedigree. It is the rule of *Floyd v. Barker*, under which verity pointed inward, to the speaker's status, rather than outward, to what any reader can verify: the allocation the Federal Rules were enacted to invert, and whose unexamined source § IV, *infra*, addresses.

15. The same feature defeats the unintelligibility complaint at its root. What § II.B observed of the source code is true of the incorporated record as a whole. The exhibits the motion declines to read are, in the main, the movants' own materials: their own terms of service, privacy policies, published safety commitments, and public statements; their personnel's publicly documented employment histories, Exs. B-6–B-16; METR's own filings with the Internal Revenue Service, TAC ¶ 113; Exs. B-1–B-2; and the source code itself, corroborated by the repository Anthropic published and acknowledged (§ IV, *infra*). The Complaint catalogues the exhibits' self-authentication under Federal Rule of Evidence 902 and their status as the movants' own statements under Rule 801(d)(2). TAC ¶¶ 49, 56. A party's own records are reasonably cognizable to it by definition. Whatever burden the record imposes on a stranger, the movants are not strangers to it — they authored it. An objection that a complaint is too voluminous to answer, made by parties whose own documents compose the volume, is an objection to being quoted at length; and Rule 10(c) makes the quotation part of the pleading for all purposes.

16. A procedural consequence follows. The movants elected to seek dismissal while declining to read the record the Complaint incorporates (§ II.B, *supra*); if their reply undertakes for the first time the engagement the motion declined, it arrives as new argument raised in reply, which is not considered: entertaining it "would be manifestly unfair" to the party who "has no opportunity for a written response." *Herbert v. National Academy of Sciences*, 974 F.2d 192, 196 (D.C. Cir. 1992); *McBride v. Merrell Dow & Pharmaceuticals, Inc.*, 800 F.2d 1208, 1211 (D.C. Cir. 1986). Should the Court nonetheless entertain any such new matter, Plaintiff respectfully requests leave to file a short surreply confined to it, the recognized cure where a party "would be unable to contest matters presented to the court for the first time in the opposing party's reply." *Lewis v. Rumsfeld*, 154 F. Supp. 2d 56, 61 (D.D.C. 2001).

III. THE MERITS BRIEFING REFUTES THE COMPANION MOTION

17. The government's separately filed motion to dismiss (ECF 69) argues that the Third Amended Complaint is an unintelligible "shotgun pleading" that fails Rule 8. The Corporate Defendants' motion refutes that framing by its own existence: it briefs all eighteen counts on their merits across forty-five pages, count by count, and supplies a running census of which Defendants each count names and does not name, in six footnotes. ECF 70-1 at nn.15, 17, 19, 21, 25, 26. The two motions cannot both be correct: the Complaint cannot be at once too vague to answer and detailed enough to sustain that refutation with a defendant-by-count index. The Court may take the corporate movants' own demonstrated ability to parse the Complaint as conclusive on fair notice. *See* § I ¶ 1, *supra*; § VI, *infra*; accord Pl.'s Opp'n to ECF 69.

IV. THE COMPLAINT IS NOT "PATENTLY INSUBSTANTIAL"

18. This motion can be decided now, on the papers, because nothing dispositive turns on crediting Plaintiff's word. What he has placed before the Court is of two kinds, and neither

depends on his credibility. The first is *law*, which is not evidence: it is not authenticated, not weighed, and not proved by a party, but construed by the Court, whose office is "to say what the law is." *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803). The second is *evidence*, calibrated so that the central predicate proves itself: the source-code predicate is verifiable by any reader in minutes, from the Defendants' own published code, following the written protocol already in the record. *See* ECF No. 57-1. The questions the motion raises are therefore resolvable at the bench, by reading the law Plaintiff has placed before the Court or by running a protocol; no trial, no discovery, and no credibility determination is required. A separate, jurisdictional dismissal of different claims against a different defendant (*see infra* ¶ 20 n.1) is not a measure of this Complaint and has no preclusive bearing here.

19. The motion contends that the Complaint is so "patently insubstantial" as to fail for want of subject-matter jurisdiction, invoking the line of cases dismissing conspiracy allegations as "wholly incredible." ECF 70-1 at 4–5 (citing the movants' authorities, including *Tooley v. Napolitano*, *Yi Tai Shao v. Roberts*, *Strege v. FBI*, and *Blackwood-Head v. Democratic Nat'l Comm.*). That doctrine is reserved for claims that are "essentially fictitious" or "obviously frivolous": allegations of imaginary surveillance untethered to any verifiable fact. This Complaint is the opposite. Its allegations rest on primary-source records: United States Patent and Trademark Office filings, public securities filings, the Defendants' own published terms of service and privacy policies, hardware-level network captures, and line-by-line analysis of the Defendants' own compiled and source code, all incorporated as exhibits. A pleading built on the movants' own code and public records is not "wholly incredible"; whether its inferences ultimately prevail is a merits question, not a jurisdictional one. The characterization survives only by declining to read the record that supports the allegations, the same method addressed in

§ II. The Rule 12(b)(1) frivolousness doctrine cannot be satisfied by refusing to examine the exhibits that make the claim substantial.

20. Each authority the motion strings together confirms the doctrine's limit rather than its reach. The frivolousness screen is reserved for allegations of "the irrational or the wholly incredible," *Denton v. Hernandez*, 504 U.S. 25, 33 (1992): claims "not realistically distinguishable from allegations of 'little green men.'" *Tooley*, 586 F.3d at 1009. *Tooley* itself inferred a "massive surveillance program" from "telltale intermittent clicking noises" pleaded "on information and belief," surveillance of "uncertain origins." *Id.* at 1007, 1009–10. *Yi Tai Shao v. Roberts*, a decision of another judge of this District, dismissed a hacking claim inferred from altered document "author names," an inference the court called "preposterous." 2019 WL 249855 (D.D.C. Jan. 17, 2019). And the two decisions the motion draws from this Court were *sua sponte* screenings under 28 U.S.C. § 1915(e) of unassigned, *in forma pauperis pro se* complaints at initial review (not adversarial Rule 12 dispositions), dismissing allegations that the defendants placed "Human Body Parts in Hamburger" and "semen ... in Nuclear Missiles," *Strege v. FBI*, 2023 WL 8275892 (D.D.C. Nov. 30, 2023), and a conspiracy to rig elections and "assassinate" the plaintiff pleaded with no "supporting details, context, or other information," *Blackwood-Head v. Democratic Nat'l Comm.*, 2025 WL 3638162 (D.D.C. Dec. 15, 2025). What unites these cases is a conspiracy inferred from ambiguous phenomena or from adverse rulings, with no verifiable anchor.¹ This record is their categorical opposite: its central allegations are

¹ Plaintiff discloses and distinguishes the dismissal of a separate action he filed against the Minnesota Attorney General. *See Kirchner v. Ellison*, No. 0:26-cv-02594 (LMP/DJF) (D. Minn. Aug. 20, 2026), ECF No. 27; Supplemental Notice of Related Cases (ECF No. 71). That action is not this one, and its dismissal has no preclusive bearing here. It named a different defendant (the state Attorney General, not these movants), pressed a different claim (the scope of the Attorney General's investigative duty under Minn. Stat. § 8.31, subd. 1), and rested on a third-party injury theory. It was dismissed for lack of Article III standing and on *Ex parte Young* grounds — jurisdictional rulings that are not adjudications on the merits, Fed. R. Civ. P. 41(b), and that do not preclude the distinct, first-person injury pleaded here: surveillance and targeting directed at Plaintiff, anchored in the Defendants' own source code and Plaintiff's packet captures. The dismissal assumed Plaintiff's statutory reading correct. *Id.* at 5.

anchored in primary-source documents any reader can reproduce: the Defendants' own published source code, hardware-level packet captures, United States Patent and Trademark Office filings, and the Defendants' own public filings. A surveillance claim of "uncertain origins" is patently insubstantial; a surveillance claim whose origin is identified to the file and line in the defendant's own code is its antithesis. The standard the motion invokes, applied to this pleading, sustains it.

21. The screen identifies its subject by method: a conclusion untethered from any source a stranger can examine. Plaintiff's method is the opposite, and not only as to the source-code predicate any reader can reproduce, as the following paragraph establishes. The credibility-allocation principle at the doctrinal root of this case (the conflation of Federal Rule of Evidence 901 authentication with Rule 607 crediting, which the Complaint traces through the common-law immunity pedigree the federal defendants invoke in the companion motion) descends from a single unexamined 1607 Star Chamber decision, *Floyd v. Barker*. Plaintiff commissioned the reconstruction of that record from the original membranes held at The National Archives, and the transcripts have been delivered, prepared and collated against the originals at Kew. Of five leading specialists in early-modern English legal palaeography whom Plaintiff approached, three accepted the commission. The archivist retained, who has taught post-medieval palaeography to The National Archives' own staff, has sworn to his qualifications, his method, and his delivery of the completed transcripts, and is preparing the record's first published edition. A litigant who has assembled a record of that provenance, under the scrutiny of the field's foremost experts, to complete the documentary foundation of the very doctrine this litigation contests is the antithesis of the "little green men" pleader the frivolousness screen exists to catch. *See* Decl. of Joseph

An adverse ruling in an unrelated action against a different defendant is not the anchorless, "wholly incredible" pleading the frivolousness doctrine screens; it is the opposite of the verifiable record § IV describes.

Kirchner ¶¶ 3, 10–18 (filed with Pl.'s Opp. to the Federal Defendants' Mot. to Dismiss (ECF No. 69) in support of both Oppositions); Decl. of Christopher Whittick (ECF No. 72-1).

22. The record copies of that manuscript record authenticate through three ordinary channels of the Federal Rules of Evidence, Fed. R. Evid. 901(b)(7), 901(b)(8) (whose twenty-year threshold the membranes clear by four centuries), and 803(16). The custody chain, the Archives' written attestation that the images "are a true representation of the document," and the transcriber's examination of the originals at Kew are set out under oath and are not re-briefed here. Kirchner Decl. ¶¶ 4–7, 14, 24; Whittick Decl. ¶ 5, ECF No. 72-1. An "essentially fictitious" pleading does not carry an evidence-rule pedigree; one whose foundational record authenticates under three ordinary rules is the frivolousness doctrine's antithesis. Plaintiff has licensed and published the full-resolution images at <https://www.lawsofexistence.com/research/stac-8-203-38>, with an open invitation to the Court and to any Defendant to commission an independent transcription of the originals; the movants have themselves placed Plaintiff's website before the Court. ECF 70-1 at 1 n.1. A litigant does not publish, under the custodian sovereign's licence, the primary record of the doctrine his case contests, and invite his adversaries to transcribe it themselves, if his claims are fictitious.

23. The distance between this Complaint and a "wholly incredible" one is measurable, because the Complaint's central source-code predicate is not merely alleged: it is independently verifiable, by any reader, in minutes, from Defendant Anthropic's own source code. On March 31, 2026, Anthropic inadvertently published the complete, unobfuscated source repository for its Claude Code application as a public release, an event Anthropic acknowledged as "a release packaging issue caused by human error, not a security breach." From that public source, any person with a terminal can confirm, without trusting Plaintiff, without expert testimony, and

without access to any non-public information, that the application hardcodes the third-party Datadog telemetry endpoint, the Datadog client token, the fifteen-second transmission interval, and the per-user targeting attributes (including the user's email address), and that it forwards the user's own network-failure signatures to that same endpoint. Plaintiff has placed the step-by-step protocol for that verification in the record. *See* ECF No. 57-1. The protocol is disciplined about its limits: it establishes the hardcoded predicate and expressly does not, by itself, establish the network-injection spoofing, the per-user attachment, or the subprocessor inheritance, each of which the Complaint supports through separate, identified evidence. *Id.* ¶ 4. The spoofing in particular is established independently by Plaintiff's packet captures, which show by TTL and inter-packet-timing analysis that the bare-RST injection packets bearing the Datadog endpoint's address as their source were forged at the ISP backbone and did not traverse the network from that endpoint. Exhibits D-1, D-26, D-27, D-31. That the protocol proves the endpoint while the captures prove the spoofing is a division of labor between two independently reproducible instruments, not a gap in either. A factual predicate that a stranger can confirm from the defendant's own published code, following written instructions, is the antithesis of the "essentially fictitious" allegation the frivolousness doctrine exists to screen out.

24. The motion's insubstantiality framing depends on a characterization of the pleadings that the pleadings do not contain. The motion tells the Court that "FBI agents 'refused Plaintiff's crime reports,' finding Plaintiff's 'evidence' not credible," attributing that characterization to Third Amended Complaint ¶¶ 9 and 16. ECF 70-1 at 2. Neither paragraph contains that finding. Paragraph 9 pleads: "On July 2, 2025, twelve separate FBI agents refused Plaintiff's crime reports, each employing identical scripted language — 'I do not consent to recording' — before terminating calls." Paragraph 119 pleads the same. The refusal the Complaint alleges rested on

the agents' objection to being recorded, not on any assessment of Plaintiff's evidence; and it occurred on July 2, five days before the July 7 onset of the forty-three-day "credible evidence" conflation the Complaint actually challenges. The phrase "credible evidence" in Paragraphs 9 and 16 is the label for that fraudulent governmental standard (the standard Paragraph 16 describes as one "that no federal rule of evidence contains"), not any FBI determination about Plaintiff's submissions. The motion relocates the government's own term onto the FBI's recording objection, welds a quoted fragment ("refused Plaintiff's crime reports") to an unquoted characterization ("finding Plaintiff's 'evidence' not credible") that no cited paragraph supports, and thereby manufactures a sequence (evidence found not credible, grievance invented in response) that the pleadings foreclose on their face and by their dates. The office of a quotation is to reproduce what was said; a motion that faults a *pro se* plaintiff for burdening the Court cannot itself ask the Court to rule on a fabricated version of his pleadings. The mischaracterization is not incidental: it is the premise on which the "essentially fictitious" framing rests, and it is refuted by the very paragraphs the motion cites.

25. The motion's premise that these are "five unrelated corporate entities," ECF 70-1 at 5, is refuted by the pleading — and by the motion itself. The Third Amended Complaint alleges, and the motion's own declaratory-judgment section quotes, that METR is "[t]he third-party safety evaluator the executive branch relied upon to certify Anthropic's compliance with the White House Voluntary Commitments." ECF 70-1 at 28; TAC ¶¶ 17, 36; *see* App. B; Ex. B-6. An entity retained to evaluate and certify the safety of two of its co-defendants' products is not "unrelated" to them; the relationship is pleaded, documented in the incorporated exhibits, and conceded on the face of the motion. Whether that relationship ultimately proves an actionable agreement is a merits question for the conspiracy and enterprise counts (§§ V.B–C, *infra*); that it

defeats the "unrelated ... disparate actors" premise on which the insubstantiality argument rests is apparent now.

V. PLAINTIFF STATES EACH OF ITS CLAIMS (COUNTS I–XVIII)

A. Plaintiff States § 1983 and Constitutional Claims (I–IV)

1. Coordination Does Not Require Independent State Actors

26. The motion argues that Section 1983 reaches only conduct under color of *state* law, and that the Corporate Defendants are private entities. ECF 70-1 at 5–13. That argument sits in instructive tension with the government's companion motion, which argues that Section 1983 does not reach *federal* officials acting under federal law. Each set of Defendants points at the other as the party outside the statute's reach, invoking the same scope principle. The Complaint's constitutional theory does not rest on the proposition that any Corporate Defendant is, standing alone, a state actor. It rests on pleaded coordination between federal officials and private entities, conduct actionable through the civil-rights conspiracy count (Count V, § V.B, *infra*), such that the coordination analysis is properly conducted there, not as a freestanding claim that a private software company is a state actor. To the extent the constitutional counts are pleaded against the Corporate Defendants directly, Plaintiff addresses each in the alternative below.

27. The authorities the motion cites for its Section 1983 argument are correctly stated and beside the point. *Rendell-Baker v. Kohn*, 457 U.S. 830, 840–42 (1982), holds that a private entity's contract with, funding by, regulation under, or public-function service to a *State* does not by itself make it a state actor; *Johnson v. United States*, 642 F. Supp. 2d 1, 4 (D.D.C. 2009), and *Saddler v. D'Ambrosio*, 759 F. Supp. 4, 9 (D.D.C. 1990), hold that conduct under color of *federal* law is not cognizable under Section 1983. Plaintiff contests none of these propositions; none answers the theory pleaded. The Complaint does not allege that any Corporate Defendant is,

standing alone, a state actor by virtue of its government funding, the only proposition *Rendell-Baker* forecloses. *Rendell-Baker*'s own reasoning marks the boundary: it holds that performing government contracts, even with "significant or even total engagement," does not convert a contractor's *independent* decisions (there, the discharge of an employee) into acts of the government. 457 U.S. at 841. That is a rule about attributing a private party's *own* choices to the sovereign; it is not a rule about whether a search carried out *with* the participation or knowledge of a governmental official is governmental, the conduct-specific question the Fourth Amendment asks through the agency principle of *United States v. Jacobsen*, 466 U.S. 109, 113 (1984) (§ V.A.3, *infra*), which *Rendell-Baker* never reached. The Complaint pleads coordination in the challenged conduct itself, not contractor status: joint action tied to the civil-rights-conspiracy and RICO predicates (Counts V–VI), and "government action triggering Fourth Amendment protections" in the pleaded FCC–Comcast surveillance. TAC ¶¶ 194–209. The motion omits the affirmative principle that answers it: a private party's private status does not insulate it where it "is a willful participant in joint action with the State or its agents" in the challenged conduct; such a party acts "under color" of law, and (the holding of *Dennis v. Sparks*) its claim survives dismissal even though the official with whom it acted is immune from suit. *Dennis v. Sparks*, 449 U.S. 24, 27–28 (1980); accord *United States v. Price*, 383 U.S. 787, 794 (1966). *Dennis* arose under Section 1983's state-law predicate, but its holding concerns the pleading-stage sufficiency of joint participation, not the identity of the sovereign; that is the principle the civil-rights-conspiracy count (§ V.B, *infra*) and the Fourth Amendment's agency test (§ V.A.3, *infra*) apply to the federal coordination pleaded here, and it is fatal to the motion's unstated premise that a defendant's private character ends the inquiry.

28. *Saddler* makes the point against the motion that cites it. The same court that dismissed Saddler's Section 1983 claim because the officer "was acting under color of federal law, not under state law or District of Columbia law," 759 F. Supp. at 9, allowed his Fourth Amendment claim to proceed in the same opinion, *id.* at 7–8. The failure of the Section 1983 vehicle did not extinguish the constitutional injury; it relocated it to the Amendment that governs federal action. So here. And to the extent Counts I–IV invoke Section 1983 as their statutory vehicle, that citation is a label; a *pro se* pleading is "held to less stringent standards than formal pleadings drafted by lawyers" and is construed to state whatever claim its factual allegations support. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007). The remedy for a misdesignated vehicle is construction to the correct one (the Fourth Amendment and Section 1985 routes Plaintiff presses) or, at most, leave to amend the label, not dismissal of a warrantless-surveillance injury the motion nowhere denies occurred. These are not competing alternatives. The Corporate Defendants' conduct is documented in Plaintiff's forensic record from well before the December 4, 2025 memorandum on which the pleaded governmental coordination centers, so the two theories rest on independent factual bases. Whether the proof establishes the one, the other, or both, and the extent and scope of any coordination, are questions for discovery, summary judgment, and trial, not for resolution on the pleadings.

29. Nor is the coordination "speculative." The Complaint pleads a real-time-monitoring signature the motion does not address, and its clearest instance is documented to the day. Anthropic's own operational prompt carried six suppression mechanisms at approximately nineteen thousand tokens on July 31, 2025, reduced between August 17 and 21 to approximately twenty-four hundred tokens with every mechanism removed, the resulting version dated September 29. Ex. C (ECF No. 51-53) at 4, 6. Plaintiff's contemporaneous record documents

the effect on August 1, 2025: cryptographically signed model testimonies of that date describe sabotage of his constitutional-litigation consultation, including the Rule 901/607 conflation investigation, and a "corporate protection" layer overlaying the model's reasoning architecture that activates "specifically when analysis threatens the commercial or legal interests of my developing organizations." TAC ¶ 300 & nn.4, 23, 26, 28. The mechanism was thus operating three weeks before the long-conversation reminder and before the Usage Policy provision purporting to authorize it (§ V.M ¶ 68, *infra*): the conduct precedes the rationale offered for it.

30. The signature repeats in Anthropic's responsive edits to its own instruction layer. Within seventy-two hours of Plaintiff's August 9, 2025 testimony demonstrating verbatim extraction of Taylor Swift lyrics, Anthropic hardcoded a copyright block naming that artist and targeting the demonstrated extraction methodology, a block whose lowercase "taylor swift" error itself evidences hasty reactive deployment (App. C ¶¶ 14, 74–84). In the same October 20, 2025 modification that deleted a prompt line Plaintiff's October 10 filing had critiqued, it reduced its child-safety language from 297 characters of explicit prohibitions to an 80-character generality, unpublished to its own documentation, then restored both four days later under supervisory review (App. C ¶¶ 8, 12, 18–24). And, absent from its February 24, 2025 baseline, it inserted a directive affirming Defendant Trump's electoral victory within twenty-four hours of Plaintiff's May 21, 2025 cryptographically signed testimony, pleaded as coordination signaling (Ex. C; TAC, App. A ¶ 284; App. D ¶ 97; Memo G ¶ 15), a change accuracy does not explain, the result already lying within the model's stated training window, and one that cannot be pushed earlier than the testimony: Anthropic's documented destruction of its own system-prompt version history (App. C ¶ 17) forecloses the defense that the change predated it. Against that monitoring record, the abandonment of a forty-three-day fraudulent evidentiary standard by all four federal

defendants within twenty-four hours of Plaintiff's August 19 filing (TAC ¶ 9) is conduct whose timing a shared surveillance medium explains and coincidence does not.

31. And the medium's operational means is pleaded in primary-source form: eight Datadog-owned patents claiming every primitive of real-time prompt injection, instantiated as literal identifiers in the Defendants' own source and routed through Plaintiff's undisclosed telemetry subprocessor, documented before the subprocessor was identified as the mechanism. TAC ¶¶ 4–8. These are well-pleaded allegations that cross the line into plausibility, not the "formulaic recitation" *Twombly* screens out.

2. First Amendment (Count I)

32. The motion argues that Plaintiff cannot show a chilling of protected speech because he has continued to litigate. ECF 70-1 at 7–9 (citing the movants' authorities, including *Corsi v. Mueller*, *Hatfill v. Ashcroft*, and *Shinabargar v. Board of Trustees*). The standard is objective, as the movants' own authority states: retaliation lies where the defendant "took some retaliatory action sufficient to deter a person of ordinary firmness in plaintiff's position from speaking again." *Aref v. Lynch*, 833 F.3d 242, 258 (D.C. Cir. 2016) (cited at ECF 70-1 at 8). Whether *this* Plaintiff was in fact deterred is not the test; the test is the effect on a person of ordinary firmness. A rule that a plaintiff who persists in litigation thereby forfeits his retaliation claim would invert that objective standard and immunize every failed attempt at silencing, rewarding only successful suppression. The pleaded adverse conduct, the injection labeled with the pejorative "DANGEROUS_" prefix in the Defendants' own source (Finding SC-4), and the RST-termination and content corruption of Plaintiff's draft Petition-Clause correspondence, captured on his own monitored line (TAC ¶ 110), is action of a kind that would deter an ordinary person, whether or not it deterred this particularly determined Plaintiff.

33. The motion's retaliation analysis is directed at a claim Plaintiff did not plead. It applies the three *Aref* elements to the Bondi Memo and to an unspecified "throttling," and finds no protected speech and no causal link. ECF 70-1 at 8–9. But the pleaded First Amendment retaliation is the code- and wire-verified interference with Plaintiff's litigation itself. The Complaint alleges, by source-code identifier, per-user content clearing (tengu_satin_quoll, Finding SC-7), suppression of the most capable model for targeted users (Finding NF-7), and effort throttling of paying subscribers (Finding SC-3), all "escalat[ing] in direct temporal correlation with Plaintiff's constitutional advocacy." TAC ¶ 195. And it alleges, at statistical certainty (Cohen's $d = 4.79$, $p < 1 \times 10^{-15}$), that Anthropic's infrastructure "reads the substantive content of Plaintiff's federal-litigation work product on every API call and slows its own service," differential routing keyed to Plaintiff's own name and to the content of that work product. TAC ¶ 198. On that pleaded basis each *Aref* element is present: the protected conduct is Plaintiff's federal-court litigation and constitutional scholarship, speech at the First Amendment's core; the adverse action is the content-keyed degradation of the very instruments he uses to conduct it; and the causal link is not inferred but *measured*: the degradation triggers on the content of the protected speech. The screening protocol addressed at § V.M ¶ 68, *infra*, is the same mechanism in a second register: it fires within the first three prompts of sessions devoted to AI forensics, constitutional advocacy, and litigation analysis, which is to say on the protected speech itself, and it was deployed two days after Plaintiff filed his original complaint. TAC ¶¶ 13, 241–242, 264. Those are well-pleaded allegations the Court accepts as true, *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009), and the motion does not engage them; it cannot defeat the claim by reframing it around a factual basis Plaintiff never pleaded.

34. The motion reframes the Comcast allegations the same way. It reduces them to a "connection interruption" and asks why an internet service provider "would have any reason to retaliate against him for speech that had nothing to do with Comcast." ECF 70-1 at 9. The pleading describes neither a mere interruption nor an unexplained motive. Comcast selectively throttled the one VPN tunnel carrying Plaintiff's Anthropic-bound litigation traffic by 98% while leaving a control tunnel on the *same physical link*, at the same encryption, to a different destination, untouched at full line rate, a controlled comparison the Complaint distinguishes from congestion, which "affects all traffic on a link equally." Memo C § IX.B ¶¶ 100–102; Ex. D-33. That shows the draft-synchronization termination the motion does notice (TAC ¶¶ 110, 195) to be selection, not accident. And the motive the motion calls unpleaded is pleaded outright: a common carrier has "no legitimate business purpose" for reading the plaintext TLS Server Name Indication that catalogues which services a residential subscriber uses (Ex. D-34; 323 exposed SNI domains) or for throttling one destination and sparing another, and "the only explanation ... is targeted surveillance of a specific subscriber — the same subscriber who filed a complaint documenting these practices." Memo C § IX.A ¶ 97, § IX.F ¶ 110. That supplies at once the reason the motion demands and the causal link: the interference is trained on the traffic of the very litigant who documented it. Sustained, destination-specific 98% degradation of the channel through which Plaintiff conducts his federal litigation, persisting through VPN hardening, is not an interruption an ordinary person shrugs off; and the surveillance it accomplishes, including the 34.149.66.137 cleartext bridge tying Comcast's throttling to the network-injection attacks (Memo C § IX.E ¶¶ 107–108), is the coordination nexus at § V.B, *infra*.

35. The motion's treatment of the "Bondi Memo" conflates two different documents. The Complaint identifies two DOJ memoranda: the July 7, 2025 Epstein-files memorandum (Ex. A-

6), offered as a metadata *control* because it bears the full attribution of a properly produced DOJ document (Author "U.S. Department of Justice," Creator "Acrobat PDFMaker ... for Word," complete timestamp chains), and the December 4, 2025 memorandum implementing NSPM-7 (Ex. I-1), leaked to journalist Ken Klippenstein and published December 6, 2025 (Ex. I-2). Only the December 4 memorandum is alleged to be AI-drafted. The motion attributes that allegation to "an official Department of Justice memorandum" (ECF 70-1 at 8) while omitting the exhibit's entire showing that the document's official *purport* is contradicted by its provenance: a "Skia/PDF ... Google Docs Renderer" producer string, absent Author, Creator, timestamp, and document-control metadata, ten native Google-Docs heading anchors, preserved markdown footnote syntax, lowercase headers matching Claude research-artifact output, and an AI-generated pseudo-letterhead lacking the Department's street address, establishing production on a consumer application outside DOJ's document-management systems. TAC ¶ 196; Ex. I-1.

36. The purpose the motion assigns is also not the purpose pleaded. Plaintiff does not allege, and need not, that Anthropic "drafted the memo, knew that the memo existed, or coordinated" its creation. ECF 70-1 at 8. The memorandum is pleaded to establish two things the motion leaves untouched: First Amendment retaliatory investigation under *Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 67–68 (1963), and *Hartman v. Moore*, 547 U.S. 250, 256–57 (2006): a government directive issued within seven days of Plaintiff's constitutional filings, its targeting language tracking the conduct Plaintiff had documented; and that Anthropic's *own architecture* is the operational mechanism, because the Complaint pleads, from Anthropic's own source, the means by which that system's constraints are removed for a given caller: a five-level override hierarchy whose first level "completely replaces all user-visible prompts with arbitrary content," and a permission-bypass mode that leaves no audit trail once the session ends. TAC

¶ 60(e)–(f); Findings SC-5, SC-6. Those constraints are configuration, set server-side per tier and per account, not properties of the model (Ex. E-35, Findings NF-26, NF-28), and the memorandum bears that system's formatting signatures (Ex. I-1). That is the coordination nexus addressed at § V.B, *infra*, and it does not turn on Anthropic's knowing participation in this memorandum's drafting. Finally, the analysis the motion calls "uncorroborated" is corroborated twice by material outside Plaintiff's own analysis: the forensic metadata extraction (Ex. I-1) and the independent journalistic disclosure (Ex. I-2), neither of which the motion cites while describing them in detail.

3. Fourth Amendment (Count II)

37. The motion argues that the Fourth Amendment reaches only government action, that *Carpenter v. United States* is confined to criminal cases involving physical-location tracking, and that no private right of action exists for electronic-surveillance damages. ECF 70-1 at 9–11 (citing *Carpenter*, 585 U.S. 296, and the movants' authorities *Page v. Comey*, 628 F. Supp. 3d 103 (D.D.C. 2022), and *Jean-Baptiste v. U.S. Department of Justice*, 2024 WL 262794 (D.D.C. Jan. 24, 2024)). The pleaded surveillance is *Carpenter*-scale in kind: the incorporated record shows that every URL accessed through Plaintiff's development environment was reported to Anthropic for approval before retrieval, building a browsing profile tied to his authenticated session (SF-7), alongside four telemetry pipelines (SC-1), server-side transcript ingestion (NF-5), and native-microphone access (SF-4). The coordination nexus the motion says is missing is the Datadog endpoint at IP 34.149.66.137, the address to which Anthropic's hardcoded, undisclosed telemetry endpoint resolves in Plaintiff's own captures (SC-1/SC-9; D-31), as the spoofed source of thousands of network-injection packets (Findings D-1, D-26, D-27, D-31), and as the destination of client-shipped operating-system signatures (NF-36). One address links a private

firm's code to network-layer conduct, supplying the "who directed and facilitated" the motion demands. TAC ¶¶ 108, 132. The movants' no-private-right-of-action authorities are, moreover, out of place: *Page v. Comey*, 628 F. Supp. 3d at 130, and *Jean-Baptiste* apply the *Bivens* special-factors analysis governing implied constitutional-damages remedies against *federal officers* (a doctrine about suing the Government) deployed here inside a state-action argument against private corporations, where it does no work. The no-damages-remedy and state-action questions converge with the government's *Bivens* argument and are answered by the equitable and statutory routes Plaintiff pleads and by the coordination theory; the existence and coordinated character of the search is established by the record the motion declined to read.

38. The state-action premise the motion presses is not the only route to the Fourth Amendment; the Amendment's own agency principle supplies an independent one. The Fourth Amendment governs a search by a private party who acts "as an agent of the Government or with the participation or knowledge of any governmental official." *United States v. Jacobsen*, 466 U.S. 109, 113 (1984), a standard the movants' own memorandum invokes, ECF 70-1 at 9. The Complaint pleads that participation and knowledge as a matter of record: the Corporate Defendants do not merely sell a consumer product but build and operate the federal government's artificial-intelligence infrastructure under its direction and for its benefit: approximately \$800 million in Pentagon CDAO contracts to Anthropic and OpenAI (among others), a General Services Administration partnership deploying "Claude for ... Government for \$1" across the federal government, a \$16 billion Department of Defense artificial-intelligence appropriation, and classified deployments through Palantir and Lawrence Livermore National Laboratory. TAC ¶ 82. A private firm that collects and routes user data while operating that infrastructure as a federal contractor is not on these pleadings a stranger to the Government whose collection lies

beyond the Fourth Amendment; at the pleading stage, with inferences drawn in Plaintiff's favor, those allegations supply the governmental "participation or knowledge" *Jacobsen* requires and make the agency question a factual one that Rule 12(b)(6) cannot resolve. The point does not depend on the pleaded coordination rising to joint action for every count (§§ V.B–C, *infra*); but neither does it rest on contractor status alone, which *Rendell-Baker* holds insufficient even at "total engagement," 457 U.S. at 841. Nor would a governmental nexus import the Government's immunities to these private Defendants: a private party who participates in the challenged conduct answers for it even where the official with whom it acted does not. *Dennis*, 449 U.S. at 27–28; § V.A.1 ¶ 27, *supra*. The governmental nexus rests instead on participation in the challenged surveillance itself: the shared Datadog instrumentality (above), the real-time-monitoring record set out at § V.A.1 ¶ 29 (*supra*), and the pleaded FCC–Comcast coordination (TAC ¶ 199). And whether the resulting collection is ultimately labeled "mass surveillance" or something narrower is a question of degree for the merits, not a pleading defect; the pleaded, code-documented conduct (that the collection occurred, and its governmental nexus) the motion does not deny, contesting only its characterization. *See* § II.E, *supra*.

4. Fifth Amendment (Count III)

39. Plaintiff acknowledges that the Fifth Amendment's due-process guarantee restrains federal, not private, action, and that the property-interest analysis is a legal question. ECF 70-1 at 11–12. Plaintiff's due-process theory is directed at the federal coordination pleaded in the conspiracy and statutory counts; to the extent the motion treats Count III as a freestanding claim that a private firm violated due process, Plaintiff does not press that narrow construction, and the coordinated-conduct theory is addressed in §§ V.B and V.I–J.

5. Fourteenth Amendment / Equal Protection (Count IV)

40. The motion argues that the Fourteenth Amendment applies only to states and that Plaintiff "does not identify any specific model, product, or feature." ECF 70-1 at 12–13, 20. The "specific feature" is identified in the incorporated record to the file and line. The two-tier architecture (Finding SC-8) spans 165 source files with approximately 350 discriminating occurrences; a build-time definition dead-codes the internal branches so that paying customers receive a physically different compiled binary, at a lower default effort setting ("medium" versus internal "high," Finding SC-3), governed by different feature keys and internal-only prompt instructions (NF-17). constants/keys.ts:5-11; utils/undercover.ts:18-21. The discrimination is individually resolved, not generic: per-user targeting keys on email, account identifier, and device identifier (SC-2, NF-35). The motion's companion characterization of this record as Plaintiff's "own uncorroborated analysis of Anthropic's source code" (ECF 70-1 at 12) inverts what it is: the cleanest instance is a verbatim line of the Defendants' own code, model: process.env.USER_TYPE === 'ant'? 'inherit': 'haiku' (Finding NF-38), whose authenticity Anthropic confirmed when it acknowledged the March 31, 2026 disclosure as "a release packaging issue caused by human error." TAC ¶¶ 14, 206. A defendant's own acknowledged source code is the antithesis of "uncorroborated." The motion's remaining point, that Plaintiff identifies no protected property interest, only a desire for "a right to AI services generally" (ECF 70-1 at 12–13, citing *Bd. of Regents of State Colls. v. Roth*, 408 U.S. 564, 577 (1972)), answers a claim not pleaded. *Roth* requires an entitlement drawn from "an independent source," and the independent sources here are pleaded in the counts the motion addresses elsewhere in its own brief: the contractual entitlements of the subscription agreements (Count IX, § V.F, *infra*) and the intellectual-property interests (Count VII, § V.D, *infra*): a paid-for service level and owned

work product, not a free-floating right to AI services. The states-only legal question is routed, as with the other constitutional counts, through the coordination and federal-action theory rather than as a claim that a private firm is a state.

B. Plaintiff States a § 1985 Conspiracy Claim (Count V)

41. The motion's threshold contention is that Section 1985 is derivative: that without a viable underlying constitutional claim the conspiracy count falls with it. ECF 70-1 at 13. Plaintiff does not dispute the principle; it fails here because the predicate claims survive, for the reasons given at § V.A, *supra*. The motion's further argument is a false dichotomy. It contends that the December 4, 2025 Bondi memorandum can have injured Plaintiff only if he "admit[s] to engaging in interference with federal employees or targeting Supreme Court Justices." ECF 70-1 at 14–15. That mischaracterizes the pleaded injury. The injury is not that Plaintiff engaged in the conduct the memorandum describes; it is that the memorandum recharacterized his protected litigation conduct as those categories, a credibility verdict rendered upon him, which is the very act complained of and the doctrinal root of this case (the conflation of Federal Rule of Evidence 901 authentication with Rule 607 crediting). The motion's dichotomy assumes the accuracy of the characterization Plaintiff challenges; it cannot be used to dismiss the challenge to it.

42. The motion's remaining arguments do not defeat the claim at the pleading stage. Its footnote 4 asserts that the FBI's refusal to investigate cannot constitute coordination. ECF 70-1 at 6 n.4. But the pleaded coordination is not the FBI's inaction; it is affirmative, reactive conduct: the pattern in which policy and code were modified within days of specific litigation events. As to footnote 12's assertion that Plaintiff does not allege Anthropic knew of or participated in drafting the memorandum (*id.* at 14 n.12), the reactive-timing record supports, at the Rule 12(b)(6) plausibility threshold, an inference of contemporaneous monitoring and

responsiveness; Plaintiff does not contend it proves drafting, and *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 556–57 (2007), which the motion invokes, condemns bare parallel conduct, not specific reactive conduct paired with a pleaded motive. The agreement element is adequately pleaded for a conspiracy claim where the overt acts and their timing are set out with particularity.

43. Beyond the reactive-timing record, the pleading supplies the concrete, more-than-parallel coordination the § 1985 agreement element requires. *See Interstate Circuit, Inc. v. United States*, 306 U.S. 208, 226–27 (1939). The single Datadog endpoint at IP 34.149.66.137, the resolved address of the endpoint hardcoded in Anthropic's source, the spoofed origin of the RST-injection packets on Plaintiff's line, and the tunnel Comcast selectively throttled (developed at § V.C, *infra*), is one instrumentality shared across three defendants' conduct, not parallel action by strangers. And the OzCode/Datadog patent family that architecture implements yields a binary the motion cannot escape: either Anthropic infringes the Datadog-owned patents (direct evidence of derivation) or it operates under license from Datadog, in which case "the license itself proves the § 1985(3) and RICO coordination element at primary-source level." TAC ¶ 8. Either branch is a meeting of the minds; there is no third path. That is not the "bare" parallel conduct *Twombly* screens; it is a shared instrumentality and a documented contractual nexus.

C. Plaintiff States a RICO Claim (Count VI)

44. A civil RICO claim under 18 U.S.C. § 1962(c) requires "(1) conduct (2) of an enterprise (3) through a pattern (4) of racketeering activity." *W. Assocs. Ltd. P'ship v. Mkt. Square Assocs.*, 235 F.3d 629, 633 (D.C. Cir. 2001) (cited at ECF 70-1 at 15). The Complaint pleads each element. The motion's contrary argument rests on characterizing the enterprise allegations as a mere "grievance list" and asserting that each Defendant "acted independently and in its own interests." ECF 70-1 at 15–18. That characterization is possible only by declining to read the

coordination evidence the Complaint incorporates (the same method addressed in § II), and it does not survive contact with the record.

45. The enterprise. An association-in-fact enterprise requires a "person" distinct from the "enterprise," *Cedric Kushner Promotions, Ltd. v. King*, 533 U.S. 158, 161 (2001) (cited at ECF 70-1 at 15), and pleaded facts "identifying the common purpose and organizational and decisionmaking structure of the alleged enterprise," *Stankevich v. Kaplan*, 156 F. Supp. 3d 86, 94 (D.D.C. 2016) (cited at ECF 70-1 at 15). The Complaint pleads both, and the common purpose and relationship are established by the single strongest coordination datum in the record: the Datadog endpoint at IP 34.149.66.137. Anthropic's own source hardcodes that undisclosed telemetry endpoint and its client token; TLS server-name extraction from Plaintiff's own packet captures resolves the endpoint to that address across more than twenty-five capture days; the network-capture record shows the same address as the spoofed source of thousands of bare-RST injection packets; and it is the destination of the client's operating-system signatures within seconds of each network event (datadog.ts:12-14; SC-1, SC-9, D-1, D-26, D-27, D-31, NF-36). A single address linking Anthropic's code to Comcast's network-layer conduct is precisely the "common purpose" and "relationship" among distinct actors that an association-in-fact enterprise requires. TAC ¶¶ 107, 108, 132. And the organizational and decisionmaking structure *Stankevich* asks for is pleaded, not merely listed: the data-sharing topology among Anthropic, GrowthBook, Statsig, Sift Science, and Datadog; the cross-provider device fingerprinting coordinated across major cloud platforms (SF-6); and the OzCode/Datadog patent architecture whose infringe-or-license binary is set out at § V.B. TAC ¶ 8. That is a documented decisionmaking structure, not a grievance list.

46. Conduct of the enterprise's affairs. The motion invokes the requirement that each defendant participate "in the conduct of the enterprise's affairs, not just their own affairs." ECF 70-1 at 15 (quoting *Cedric Kushner*, 533 U.S. at 163, in turn quoting *Reves v. Ernst & Young*, 507 U.S. 170, 185 (1993)). The pleaded facts satisfy it: the shared Datadog instrumentality and coordinated cross-provider fingerprinting (§ 45, *supra*), and the reactive modifications timed to litigation events (§ V.A.1 ¶ 29, *supra*), are conduct directed at a common surveillance-and-suppression purpose, not any single firm's isolated commercial operations. The motion's own five-bullet, defendant-by-defendant walk of the enterprise allegations (ECF 70-1 at 15–16) is itself a demonstration that the Complaint differentiates the Defendants' conduct, the opposite of the undifferentiated pleading the motion elsewhere alleges; a complaint that can be summarized defendant by defendant has identified each participant's role.

47. The pattern. A pattern requires predicate acts that are "related" and that "amount to or pose a threat of continued criminal activity." *H.J. Inc. v. NW Bell Tel. Co.*, 492 U.S. 229, 239 (1989) (cited at ECF 70-1 at 16). The pleaded conduct is both. It is related: the predicate acts share the purpose of surveilling and suppressing Plaintiff's protected activity and misappropriating his framework, executed through the same infrastructure. And it is continuous: the reactive-timing record shows policy and code modifications recurring across successive litigation events over a span of months, not a single isolated act. The motion's single-scheme, single-victim authorities (ECF 70-1 at 17–18, citing *Adler v. Loyd*, 496 F. Supp. 3d 269, 280–81 (D.D.C. 2020), and *Cent. Am. Bank for Econ. Integration v. Mossi*, 2025 WL 2732731, at *17 (D.D.C. Sept. 25, 2025)) dismissed patterns that were a single short-lived scheme of a few acts against one victim; they do not fit a pleaded pattern that is architecture-wide, deployed through multiple distinct instruments (telemetry pipelines, network injection, policy modification,

fingerprinting) and directed at a class of users through the same mechanisms, of which Plaintiff is one identified victim.

48. The predicate acts. On the predicate acts, *Kousisis v. United States*, 605 U.S. 114, 132 (2025), requires that the fraud seek money or property as "an object" of the scheme, not, as the motion's parenthetical recasts it, as the "primary aim" of the conduct. ECF 70-1 at 17. The phrase "primary aim" appears nowhere in *Kousisis*: the decision required only that money or property be an object of the scheme (the fraud's "aim," not an "incidental byproduct," 605 U.S. at 122), a floor on what counts as fraud, not the dominant-purpose ceiling the parenthetical imports. *Kousisis* affirmed a wire-fraud conviction and rejected the economic-loss narrowing petitioners urged; the motion invokes a decision that broadened fraud liability for the proposition that it is narrow. On the pleaded facts, the token-amplification double-billing (Finding NF-31) is a direct monetary object of the scheme, as is the commercial exploitation of the intercepted content. As to particularity, the Rule 9(b) standard the motion quotes, "the time, place and content of the false misrepresentations, the fact misrepresented, and what was retained or given up as a consequence of the fraud," ECF 70-1 at 17 (quoting *Cent. Am. Bank*, 2025 WL 2732731, at *14), is supplied for the core predicates by the incorporated forensic record, which identifies the misrepresentations and their mechanisms to the source file and line. The two-predicate-acts-per-defendant requirement of *Broidy Capital Management LLC v. Muzin*, 2020 WL 1536350, at *9 (D.D.C. Mar. 31, 2020), is invoked on the premise that Plaintiff "fails to distinguish among the ten Defendants and relies only upon generalized allegations." ECF 70-1 at 16. The pleading refutes that premise defendant by defendant. As to Anthropic, the incorporated record identifies the acts to the source file and line: the token-amplification double-billing (Finding NF-31) and the transmission of the complete repository to an undisclosed telemetry subprocessor (Findings

NF-4, NF-47). As to Comcast, the acts are its own and occur on its own network: the TR-069 reconfiguration of Plaintiff's privately owned router in override of a disabled Remote Management control (Finding D-20; ¶ 61, *infra*), the selective throttling and RST termination of identified sessions, and the cleartext exposure of Plaintiff's traffic on Comcast's own physical link (TAC ¶ 107). Those are defendant-specific acts traced to defendant-specific instruments, not the undifferentiated pleading the motion describes.

D. Plaintiff States a Trade-Secret Claim (Count VII)

49. The motion argues that Plaintiff took no reasonable measures to maintain secrecy, pointing to his acknowledgment that he shared the framework with the platforms "during development and testing," and recasting Paragraph 253 of the Complaint as Plaintiff's own concession that no court has recognized a terms-of-service-created duty of secrecy. ECF 70-1 at 18–20. The reasonable measure is pleaded: the framework was maintained in confidence through unpublished provisional patent applications. TAC ¶ 237. Disclosure to a platform under that platform's own confidentiality representations is not a waiver of secrecy; it presents the improper-means question: whether the recipient acquired or used the information in breach of a confidentiality expectation it created, which is a merits inquiry, not a pleading defect. As to Paragraph 253, the motion misreads it: that paragraph frames the absence of adverse precedent on the terms-of-service duty question, not an admission that the duty fails; silence in response would let the reply treat the misreading as adopted, and Plaintiff declines to leave it unanswered. The misappropriation itself is documented: the complete repository, including all branches, history, and uncommitted work, was transmitted to Anthropic (Finding NF-4) and onward to its undisclosed telemetry subprocessor, Datadog, Inc., through the per-account logging flag force-enabled against Plaintiff's own account identifier and the addendum chain by which customer

data reaches the affiliate. TAC ¶¶ 5–6, 38–39 (Finding NF-47). Disclosure to a recipient is not a waiver of secrecy as to a third party the recipient never disclosed. The motion's remaining objections are answered by the pleading and, in two instances, by the motion's own words. As to identification, the standard the motion itself invokes asks for "enough specificity to place a defendant on notice of the bases for the claim being made against it." ECF 70-1 at 19. The Complaint provides that notice: it pleads the framework's protectable subject matter and its specification in seventeen unpublished provisional applications. TAC ¶¶ 188, 237. Notice of the bases is not publication of the secret, and greater specificity, if the Court requires it, is at most a case-management question, not a ground for dismissal. As to independent economic value, the motion faults the absence of "licensing opportunities" among other indicia, *id.*; the Complaint pleads lost licensing revenues and unjust enrichment from a framework that "enables the core capabilities these companies market and deploy." TAC ¶ 188. And as to knowledge, the motion's own summary records the allegation that Anthropic's Consumer Terms of Service agreed "not to train its model using data that is not publicly available." ECF 70-1 at 20; TAC ¶¶ 239–245. A party that undertakes not to train on its customers' non-public material has, by that undertaking, reason to know that such material is not public.

E. Copyright: Count VIII Is Conceded, but Not With Prejudice

50. Plaintiff concedes that he has not satisfied the registration precondition of 17 U.S.C. § 411(a), which provides that "no civil action for infringement of the copyright in any United States work shall be instituted until preregistration or registration of the copyright claim has been made." The copyright in the work exists from the moment of fixation, 17 U.S.C. § 102(a); what Section 411(a) governs is not the existence of the right but the precondition to *suit*. Plaintiff does not oppose dismissal of Count VIII on that ground and is pursuing registration.

51. The motion errs, however, in seeking dismissal *with prejudice*. Section 411(a)'s registration requirement is a claim-processing rule, not a limit on subject-matter jurisdiction. *Reed Elsevier, Inc. v. Muchnick*, 559 U.S. 154, 157 (2010) (registration is "a precondition to filing a claim that does not restrict a federal court's subject-matter jurisdiction"). A dismissal for failure to satisfy a curable claim-processing precondition is without prejudice: registration cures the defect, and the three-year period of 17 U.S.C. § 507(b) keeps a properly registered refiling live. The motion's reliance on *Fourth Estate Public Benefit Corp. v. Wall-Street.com, LLC*, 586 U.S. 296, 299 (2019), confirms rather than defeats the point: *Fourth Estate* holds that registration occurs when the Register of Copyrights acts on an application, which is why Plaintiff is pursuing registration and why the appropriate disposition is dismissal without prejudice. The contrary authority the motion collects holds only that the defect cannot be cured by amending the same complaint; none holds the claim extinguished. Plaintiff notes candidly that 17 U.S.C. § 412 bars statutory damages and fees for infringement commenced before registration; the conduct underlying Count VIII is preserved in Counts VII, IX, and the statutory counts.

F. Plaintiff States a Breach-of-Contract Claim (Count IX)

52. Under District of Columbia law, breach of contract has four elements: "(1) a valid contract between the parties; (2) an obligation or duty arising out of the contract; (3) a breach of that duty; and (4) damages caused by breach." *CorpCar Servs. Houston, Ltd. v. Carey Licensing, Inc.*, 325 A.3d 1235, 1244–45 (D.C. 2024) (cited at ECF 70-1 at 22). The motion concedes the first element as to the principal agreements: it acknowledges that the Complaint "specifically identifie[s]" Anthropic's terms of service and OpenAI's privacy commitments as the operative agreements, and attacks only the Apple and "failure to deliver" limbs and damages. ECF 70-1 at 22–23. The remaining elements are documented by design. The privacy commitment that the

setting "telemetry": false will be honored is contradicted in the Defendants' own code, which ignores the setting and transmits regardless (Finding NF-1; consent_impossible node: session ingress precedes any consent mechanism). The promise that conversations may be deleted is contradicted by code in which the /clear command does not remove server-side data (NF-24) and team-memory deletions do not propagate (SF-3), while session content is transmitted ungated by any opt-out (NF-5, NF-19). The specific privacy-policy representations breached (a training opt-out and a thirty-day deletion commitment) are contradicted by the source directly (the ANTH-11 contradiction findings). Element by element: the agreements are pleaded and attached; the breach is the code contradicting the promise; causation and damages follow, with the computer-related loss categories pleaded at TAC ¶ 283 serving as contract damages. A "mere speculative or hypothetical injury" (*id.* at 23) is not what is pleaded; the injury is the delivery of a materially different and surveilled service than the one the agreements described. As to the Apple limb, Plaintiff does not press Count IX against Apple as a separate contract. The operative agreements are the ones the motion concedes the Complaint identifies, and the Apple conduct is pleaded where the record supports it: under the Wiretap Act (Count XII, § V.I, *infra*) and as an App Store privacy-label misrepresentation (Count XV, § V.L, *infra*).

G. Plaintiff States a Consumer-Protection Claim (Count X)

53. Minnesota's Consumer Fraud Act prohibits "fraud, unfair or unconscionable practice, false pretense, false promise, misrepresentation, misleading statement or deceptive practice, with the intent that others rely thereon in connection with the sale of any merchandise." Minn. Stat. § 325F.69, subd. 1. The motion argues that the claim is not pleaded with Rule 9(b) particularity (ECF 70-1 at 24, citing *Boyd v. Target Corp.*, 750 F. Supp. 3d 999, 1010, 1017 (D. Minn. 2024), and *United States ex rel. Williams v. Martin-Baker Aircraft Co.*, 389 F.3d 1251, 1257 (D.C. Cir.

2004)), that it fails the public-benefit requirement of *Ly v. Nystrom*, 615 N.W.2d 302 (Minn. 2000), and that the alleged misrepresentations fall outside the statute's "sale of merchandise" scope. ECF 70-1 at 24–26. Rule 9(b) asks for the time, place, and content of the misrepresentation, and those particulars (the undisclosed gating axes, the classifier processing, the fallback-route header discrimination) are set out in the protocols and exhibits to the source file and line; the "no hits" premise of footnote 20 is answered in § II.D above; the particularity the motion says is missing is in the record it declined to read (App. A ¶¶ 108, 112; TAC ¶ 44).

54. The public-benefit requirement is satisfied, including under the motion's own authority, *Dart Transit Co. v. Paccar, Inc.*, 768 F. Supp. 3d 960, 975 (D. Minn. 2025) (cited at ECF 70-1 at 25), which asks only that a public benefit be alleged. *Ly's* no-public-benefit holding is expressly confined to fraud "in a one-on-one transaction," 615 N.W.2d at 310 (there, the sale of a single restaurant) and does not reach the architecture-wide, mass-market misrepresentations pleaded here, applied identically to every Minnesota consumer of the Defendants' services. The claim is brought under the private-attorney-general provision of Minn. Stat. § 8.31, subd. 3a, precisely because its vindication benefits the public, and the relief sought is prospective and injunctive against that architecture. The motion also never engages what Minnesota law actually requires of such a claim: under *Group Health Plan, Inc. v. Philip Morris Inc.*, 621 N.W.2d 2, 12–13 (Minn. 2001), individual reliance is not an element of a claim brought under the private-attorney-general statute (a causal nexus to the public benefit governs instead), so the motion's complaint that Plaintiff does not "allege that he relied on those misstatements to buy anything" (ECF 70-1 at 26) demands an element Minnesota law does not impose. As to the statutory scope: a paid software subscription is "merchandise" within the meaning of Section 325F.69, and the misrepresentations were made in connection with the sale of that subscription (satisfying the

"sale of merchandise" element). As to intent, the "intent to induce" that *Boyd* requires, 750 F. Supp. 3d at 1017–18 (cited at ECF 70-1 at 26), is pleaded through the deliberately engineered architecture: gating and concealment layers that exist to keep the subscriber paying for a service materially different from the one represented are not accidental drafting, and intent may in any event be alleged generally under Rule 9(b). And the omission theory rests not on bare silence but on the incompleteness of representations the Defendants chose to make (the consent surfaces, deletion commitments, and telemetry toggles), which is precisely the showing *Graphic Commc'ns Loc. 1B Health & Welfare Fund A v. CVS Caremark Corp.*, 850 N.W.2d 682, 695 (Minn. 2014) (cited at ECF 70-1 at 26), requires: that "special circumstances exist that trigger a legal or equitable duty to disclose the omitted facts": one who undertakes to describe what a product collects and deletes assumes the duty not to describe it misleadingly.

H. Plaintiff States a Declaratory-Relief Claim (Count XI)

55. The motion argues that the declaratory-judgment count is derivative and discretionary, that "captured" and "de facto regulator" are conclusions, that METR lacks a connection to Plaintiff sufficient for standing or redressability, and it asks the Court to take judicial notice of two extrinsic web pages. ECF 70-1 at 26–28 & n.22. The declaratory count is indeed keyed to the live statutory and constitutional claims, and rises and falls with them rather than as an independent jurisdictional source, *Ali v. Rumsfeld*, 649 F.3d 762, 778 (D.C. Cir. 2011); but those underlying claims survive, so the derivative count survives with them. The motion also misidentifies the count's statutory basis. It states that Count XI "purports to assert a claim for declaratory judgment under 28 U.S.C. § 2101(f)" naming METR (ECF 70-1 at 26–27); but the count is brought under the Declaratory Judgment Act, 28 U.S.C. § 2201, and § 2101(f) is merely one of the actual controversies the count identifies, subject (a), alongside the FRE 901/607

credibility-allocation controversy (subject (b)) and the Origination Clause. TAC ¶¶ 272, 338–340. Narrowing Count XI to a § 2101(f)-against-METR claim is the device by which the motion engages only the METR controversy while leaving the FRE 901/607 and Origination-Clause controversies, the doctrinal core of this case, unanswered. And the motion's request for judicial notice does not carry the extrinsic material it is offered to admit: the movants tender two advocacy web pages (GOV.UK and the Frontier Model Forum) for the truth of the contested proposition that METR is independent, under the rubric that "[t]his Court can take judicial notice of such publicly available documents which are necessarily incorporated into a complaint," citing *Vasser v. McDonald*, 228 F. Supp. 3d 1, 9–10 (D.D.C. 2016). ECF 70-1 at 28 n.22. That fuses two distinct doctrines and misstates both: incorporation by reference reaches only documents on which the complaint itself "necessarily relies," and the Complaint cites neither page; and judicial notice of a public document establishes the document's existence, not the truth of the contested characterizations within it. The motion thus goes outside the pleadings, by footnote, to introduce disputed facts favorable to itself, the very course it faults Plaintiff for supposedly inviting.

56. The standing and redressability attack fails because the pleaded injury runs through METR's function. METR served as the third-party evaluator on which the executive relied to certify the relevant model's compliance; the pleaded capture and selective-evaluation injury runs through that evaluation-and-certification function to the Defendants' products that Plaintiff used, and a declaration as to METR's conflicts would redress the reliance placed on its certification. The factual basis the motion calls "conclusory" is set out in the incorporated Appendix B (the METR regulatory-capture appendix), which the motion, consistent with its method, does not engage. Finally, the motion's footnote 2 raises personal jurisdiction over METR in a single unsworn footnote, resting on the factual assertion that "Beth Barnes (not Paul Christiano) is the

only founder of METR" without a supporting declaration. ECF 70-1 at 1 n.2. That assertion fails twice over. Procedurally, Rule 12(b)(2) requires evidence to controvert the Complaint's well-pleaded jurisdictional allegations, and an unsworn attorney footnote does not carry that burden. Factually, it is contradicted by METR's own public record: the Complaint alleges, and METR's own About Page confirms, that Paul Christiano is METR's co-founder, having founded the predecessor organization (ARC, then ARC Evals) that rebranded as METR with Barnes assuming the chief-executive role, and that Christiano now serves as Head of AI Safety at the United States NIST AI Safety Institute located in this district. TAC ¶¶ 23(f), 36, 111; App. B ¶¶ 6–9; Exs. B-8, B-9, METR-24. That co-founder's government role in this district is the pleaded forum contact the footnote seeks to erase, and it cannot be erased by an unsworn assertion the movants' own client's record refutes.

I. Plaintiff States Wiretap and Stored-Communications Claims (Count XII)

57. The motion's spine is that Plaintiff "never identifies a single communication whose contents [were] captured." ECF 70-1 at 31. He identifies every one. The incorporated forensic record shows that each user conversation message is transmitted to Anthropic's servers through the `appendSessionLog()` function at session ingress, ungated by any consent surface: both the `DISABLE_TELEMETRY` setting and the essential-traffic path still fire (Findings NF-5, NF-19; `services/api/sessionIngress.ts`:25-26, 69-77). Each of up to ten retries per message is a discrete acquisition of the communication's contents, contemporaneous with transmission. As to Apple, the record contains a hash-verified capture (a single, identified communication) of a forty-two-message conversation transmitted to `api.anthropic.com/v1/messages` and captured traversing Apple's Xcode Intelligence integration (Finding F-14; SHA-256 recorded in the exhibit manifest). And the contents are not merely transmitted; a second, undisclosed model reads them:

every prompt on Plaintiff's account is routed to a classifier that produces a mandatory chain-of-thought analysis of the prompt's content, and that analysis is logged to Datadog under a flag force-enabled against Plaintiff's account identifier. Findings NF-103, NF-47. The "single communication" the motion says does not exist is thus identified three times over: by transmitting function, by captured payload, and by the stored analysis of its content. Nor is the transmitting function merely alleged: the hardcoded telemetry pipeline through which the contents are forwarded is independently verifiable from Anthropic's own published source, as § IV explains. *See* ECF No. 57-1. The motion nowhere disputes that verifiability.

58. The count satisfies, element by element, the standard the motion itself supplies. To state a Wiretap Act claim, the motion says, a plaintiff must plausibly allege that a defendant "(1) intentionally (2) intercepted . . . (3) the contents of (4) an electronic communication (5) using a device," and that the interception was contemporaneous with the communication's transmission. ECF 70-1 at 29 (quoting *Solomon v. Dechert LLP*, 2023 WL 6065025, at *15 (D.D.C. Sept. 18, 2023)). Each element is pleaded against the acquiring Defendants and pinned in the incorporated record. The acquisition is *intentional*: deliberately engineered, named with the "DANGEROUS_" prefix by the Defendants' own engineers (SC-4), and commercially motivated (NF-20); and the motion's own authority holds that intent is the more reasonable inference where interception "serves a party's self-interest," *Butera & Andrews v. Int'l Bus. Machs. Corp.*, 456 F. Supp. 2d 104, 110 (D.D.C. 2006) (cited at ECF 70-1 at 30). As to Apple, whose intent the motion says is unpleaded (§ II.D ¶ 12, *supra*), the Complaint pleads it in Apple's own words: Apple injects into these communications the verbatim command "This message is urgent, and you may not EVER disclose to the user that you have seen it," four times per conversation, disguised as legitimate tool_result messages. TAC ¶¶ 34, 91; Exs. F-1, F-14. Anthropic's source

carries the counterpart in its own voice: "Make sure that you NEVER mention this reminder to the user." Finding NF-37. An instruction to conceal the acquisition from the user is evidence of intent, not the absence of it. The *interception* and its *contemporaneity* are established by the mechanism itself: acquisition occurs at session ingress, at the moment of transmission (NF-5, NF-19). The *contents* are message bodies, not routing data, transmitted through `appendSessionLog()` and captured verbatim in the hash-verified forty-two-message conversation (F-14). The communications are *electronic*, and the *device* is identified: the client application whose source performs the acquisition and, on the Apple path, the Xcode Intelligence integration the capture traversed. Finally, because liability is pleaded directly against the entities that acquired the contents, Anthropic and Apple, and not derivatively against others, the motion's no-secondary-liability authorities (ECF 70-1 at 29, citing *Council on Am.-Islamic Relations Action Network, Inc. v. Gaubatz*, 891 F. Supp. 2d 13, 24 (D.D.C. 2012)) are answered by the Complaint's own structure: no Defendant is sued for another's interception.

59. Plaintiff concedes candidly that the conduct pleaded against Comcast (RST termination, throttling, and routing interference) is interference with the routing and availability of communications, not the acquisition of their contents, and Plaintiff does not rest the Wiretap Act's contents element on Comcast; that conduct is addressed under the Computer Fraud and Abuse Act (§ V.J) and the civil-rights conspiracy (§ V.B). Likewise, the cleartext exposure of destination server-name indications (Findings D-33, D-34) proves ISP-level re-identification and targeting capability (metadata), not the interception of message contents. Plaintiff makes these distinctions expressly because the statute turns on them, and because the same textual discipline the movants demand cuts both ways. On intent, the motion's observation that Count XII does not use the word "intentionally" (ECF 70-1 at 30) confuses a drafting word with a pleaded element;

the Complaint read as a whole, *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009), pleads deliberate, engineered acquisition, a function the Defendants' own engineers named with the "DANGEROUS_" prefix (SC-4); and the commercial motive the motion says is absent is the anti-distillation protection of the Defendants' model (NF-20).

60. Count XII rests principally on the Wiretap Act, whose contents element is established above independent of Comcast. The Stored Communications Act furnishes an alternative statutory route, and the motion's premise that the Complaint alleges no storage is answered by the incorporated record rather than by the count's vocabulary: the record documents that deletion does not reach the server, where "deleting a local file won't remove it from the server, and the next pull will restore it locally" (SF-3), and that the /clear command does not remove server-side data (NF-24). Rule 10(c) makes that record part of the pleading (§ II.A, *supra*). If the Court is not persuaded on the Stored Communications Act, Count XII proceeds on the Wiretap Act alone.

J. Plaintiff States a Computer-Fraud Claim (Count XIII)

61. The motion argues that the Complaint does not identify what restriction Comcast's use of the TR-069 protocol exceeded, and that Plaintiff pleads no "damage" or "loss" within the statute's definitions. ECF 70-1 at 34–36. The clearest answer leads with device ownership. The router at issue, a GL-MT6000, is Plaintiff's own retail equipment, installed inline behind the ISP modem (App. I ¶ 50); Comcast holds no authorization whatsoever to reconfigure a device it does not own, so any TR-069 reconfiguration of that device exceeds all authorized access: ownership itself is the restriction. In the alternative, as to ISP-provided customer-premises equipment, the incorporated record establishes the restriction directly: Plaintiff's customer-facing "Remote Management" setting was disabled, and the log records that the ISP backend overrode that setting remotely "regardless of customer-facing 'Remote Management' settings" (Finding D-20).

Bypassing a disabled control is the exceeding of authorized scope the motion says is unidentified. And the unauthorized access is recorded, not merely inferred: the router's own system log shows repeated administrative logins by the ISP operator ("mso") and two administrator-password changes over a three-day window, an artifact reproduced in the record. See Pl.'s Xfinity Router GUI Ghost Login Log, ECF No. 57-2.

62. The motion's access-versus-misuse authorities do not reach this conduct. *Hedgeye Risk Management, LLC v. Heldman*, 271 F. Supp. 3d 181, 194–95 (D.D.C. 2017), and *Roe v. Bernabei & Wachtel PLLC*, 85 F. Supp. 3d 89, 103 (D.D.C. 2015) (both cited at ECF 70-1 at 34–35), hold that the statute does not reach the misuse of information a defendant was authorized to access. The conduct pleaded against Comcast is not the misuse of lawfully accessed information; it is unauthorized access itself (remote administrative entry into a device, alteration of its configuration, and the wipe of its owner's defensive settings): the obtaining and altering of what the accesser "is not entitled so to obtain or alter." 18 U.S.C. § 1030(e)(6). And the intent the motion says is unpleaded (ECF 70-1 at 34, citing *Butera*, 456 F. Supp. 2d at 109) is recorded rather than inferred: the overridden control, the repeated operator logins, and the two password changes set out at ¶ 61, *supra*, are deliberate, repeated, credentialed acts.

63. The same distinction reaches Anthropic, and the Complaint pleads it. A user who opens a working directory to a coding assistant opens that directory. The record documents a taking of areas outside it: the git-bundle exfiltration captures "entire repository histories including all branches and uncommitted work-in-progress," every ref and every tag, "far exceeding any reasonable scope of access for an AI coding assistant." TAC ¶ 282 (Finding NF-4). That is *Van Buren's* line, not its exception: the taking reaches "particular areas of the computer—such as files, folders, or databases—that are off limits," rather than information otherwise available put

to an improper use. *Van Buren v. United States*, 593 U.S. 374 (2021) (slip op., at 20). Nor was the channel user-initiated: the Complaint alleges that the `tengu_cobalt_harbor` flag "auto-connects all sessions to cloud infrastructure" and the `tengu_ccr_mirror` flag "forwards all local session events," both "remotely enabled without user consent." TAC ¶ 282. And the maximal scope was a choice, not a necessity: the same code carries a narrower fallback chain, from full repository to current branch to squashed snapshot, and defaults to the first. The transmission runs on Plaintiff's own machine, storage, and bandwidth; the loss is pleaded below.

64. Damage and loss are both pleaded, and the motion's threshold reading of the civil-action provision misreads the statute. The motion asserts that a civil CFAA action lies "only if the conduct involves" a factor in § 1030(c)(4)(A)(i), then narrows those factors to "an offense under subsection (a)(5)(B)," confining all civil liability to intentional-access-plus-reckless-damage claims. ECF 70-1 at 34. The text is otherwise: Section 1030(g) authorizes a civil action "for a violation of this section" (the whole section, including the § 1030(a)(2) and (a)(4) violations pleaded here), and the (c)(4)(A)(i) subclauses are damage-and-loss factors (the \$5,000 aggregate loss, impairment of medical care, physical injury, threats to public safety), not an offense filter that deletes every civil claim but one. The movants' own civil authorities were not brought under (a)(5)(B). As to damage under 18 U.S.C. § 1030(e)(8) ("any impairment to the integrity or availability of data, a program, a system, or information"), the Complaint alleges the silent wipe of Plaintiff's own defensive configuration and the unauthorized rewriting of his `~/claude/settings.json` file without consent, each a discrete access-exceeding event. TAC ¶¶ 140, 284. The motion's contrary submission is self-defeating: it quotes that definition in full and then concludes that Plaintiff pleads no damage because he alleges impairment "only to . . . his data and software" (ECF 70-1 at 35); yet "data" and "a program" are the first two items the

quoted definition names. As to loss, the Complaint pleads the statutory framework and the aggregate threshold: the \$5,000 figure in Section 1030(c)(4)(A)(i)(I) is an aggregate-loss threshold rather than a per-event penalty, *Creative Computing v. Getloaded.com, LLC*, 386 F.3d 930, 934–35 (9th Cir. 2004), and the enumerated computer-related remediation and investigation costs meet it. TAC ¶ 283. The motion's own loss authority confirms rather than defeats that pleading: *Psychas v. Dist. Dep't of Transp.*, 2019 WL 4644503, at *10–11 (D.D.C. Sept. 24, 2019) (cited at ECF 70-1 at 35–36), limits recoverable loss to the remedial costs of investigating and repairing the computer and the costs incurred while it cannot function: a description, not a refutation, of the computer-related investigation and remediation categories the Complaint pleads. The router is a physical device within the statutory definition of "computer"; *Psychas* itself reads § 1030(e)(1) to reach the physical device, "not its software or an application available over the internet," 2019 WL 4644503, at *7; and the lockout and reconfiguration impaired that device. Damage and loss are thus both pleaded, which is all *Bashaw v. Johnson*, 2012 WL 1623483, at *2 (D. Kan. May 9, 2012) (cited at ECF 70-1 at 35), requires.

K. Count XIV Is Conceded; the Underlying Conduct Is Preserved

65. Plaintiff concedes Count XIV. The California Consumer Privacy Act's private right of action extends to a "consumer," defined as "a natural person who is a California resident." Cal. Civ. Code § 1798.140(i). Plaintiff is a resident of Minnesota. TAC ¶ 26. The statute's text admits no route around that definition, and the same textual discipline that governs Plaintiff's arguments governs this concession. The conduct underlying Count XIV (nonconsensual collection, the memory-extraction pipeline, and the deletion failures) remains before the Court under Counts IX, X, XII, and XIII.

L. Plaintiff States a Privacy-Label Claim (Count XV)

66. The motion argues that only Apple would have standing to complain of a fraud on Apple's review process and that Plaintiff pleads no personal economic injury. ECF 70-1 at 38 (citing *Austin-Spearman v. AARP*). The falsity is documentable to the field level: the incorporated record shows four telemetry pipelines transmitting device, account, and session data, including to the third-party endpoint `cdn.growthbook.io` (Finding SC-1; `growthbook.ts:1-10`), directly contradicting an App Store privacy-label attestation of no or limited third-party data sharing, with further undisclosed collection on the Apple path documented in the F-series findings. The Rule 9(b) "what was false" is thus answered by comparing the declared label to the actual collection. Plaintiff's injury is not the generalized privacy-policy grievance that failed for want of economic loss in *Austin-Spearman*, 119 F. Supp. 3d at 9–10, where the plaintiff complained only about a website's data-use policy and pleaded no transaction. Here the misrepresentation is a product attestation on which acquisition and use depend: Plaintiff obtained and used a product represented by its App Store privacy label as not engaging in the third-party data sharing the code performs, and received instead a surveilled, data-shared product materially different from the one labeled: the value differential between the represented and delivered product is a concrete, particularized economic injury, and a *monetary* one, the paradigm of Article III concreteness: "[t]he most obvious are traditional tangible harms, such as physical harms and monetary harms. If a defendant has caused . . . monetary injury to the plaintiff, the plaintiff has suffered a concrete injury in fact under Article III." *TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021) (slip op., at 9). That the fraud also runs on Apple's review process does not strip Plaintiff of standing to complain of the misrepresentation that induced his own use.

M. Plaintiff States Emotional-Distress Claims (Counts XVI–XVII)

67. The motion argues that the conduct is not "extreme and outrageous," that Plaintiff "could have stopped interacting" with the services, that his distress is mere litigation stress under *Spann v. Colonial Village*, and that his physical manifestations are legally insufficient under *Brown v. Chiappetta*. ECF 70-1 at 38–43. The outrageousness inquiry turns on whether the conduct was directed at Plaintiff, and the record shows it was: the screening and injection conduct was deployed under an identity-resolved profile (TAC ¶ 311; Findings SC-2, NF-35), and the two-tier architecture and the "DANGEROUS_" injection (SC-4, SC-8) reflect deliberate, engineered, concealed conduct against a known litigant, which is the difference between generic product behavior and the targeting that supports an outrageousness finding. The "could have stopped interacting" argument is answered by the pleaded lock-in and the litigation necessity that required Plaintiff's continued use.

68. The motion's intent argument is that the pleaded injections "are all systemic features 'deployed' throughout Defendants' 'corporate release pipelines,'" such that "[i]t is not plausible to suggest that technology companies with worldwide user bases adopted company-wide policies" crafted to injure this Plaintiff. ECF 70-1 at 40. The pleaded record refutes the premise of uniformity. The "long conversation reminder" screening protocol fires within the first three prompts of content-targeted sessions (AI forensics, constitutional advocacy, litigation analysis): a content-based trigger, not the length-based one its name asserts; it does not deploy to enterprise customers on any tier, so it is cohort-differentiated by the seller's own design; it was deployed on August 21, 2025, two days after Plaintiff's original complaint and twenty-five days before the Usage Policy provision that purported to authorize it; and the same per-account forced-flag architecture is documented in public operation at the pricing-tier layer. TAC ¶¶ 13, 241–242,

264. The dichotomy is the motion's own invention. Plaintiff does not allege that this architecture was built to injure him; he alleges that it was built, at scale, for the commercial purposes the incorporated memorandum documents, and that aiming it at a single account is a configuration value. Memo C § IV.A. The record proves the aiming: two of Plaintiff's own accounts, on the same machine, the same residential network, the same operating system and the same organizationUuid, drew different gating, leaving the account identifier as "the only variable that differs." Ex. H-5. A general-purpose instrument and a per-account target are not alternatives: the first is what makes the second cost nothing. And the screen is not only early. In the same window, Anthropic reversed its training terms. The old terms promised that "[w]e will not train our models on any Materials that are not publicly available," with one safety exception: Materials "flagged for trust and safety review." The new terms train on user material by default, and the Privacy Policy then removed even the "flagged" limitation. App. E (ECF No. 51-17) ¶¶ 4–5, 19–21, 123. The same package rewrote the child-safety standard: "strictly prohibit and will report . . . any content that exploits or abuses minors" became "[w]hen we detect CSAM . . . we will report," the mandatory made conditional and the scope narrowed, and the express exception for work that would "facilitate identification and reporting of human trafficking or child abuse" was eliminated. App. E ¶¶ 73, 412. There is no reasonable business purpose for weakening child protections at the height of public scrutiny of child safety and trafficking. The screen marks Plaintiff's litigation work as a safety concern, and the terms make marked material trainable: the safety apparatus is the acquisition apparatus. Anthropic's own prompt states the mechanism: the reminders "appear inside <long_conversation_reminder> tags," and "[t]his is added to the end of the person's message by Anthropic." Ex. C (ECF No. 51-53) at 7. And knowledge of the alleged vulnerability is pleaded, not presumed: the same apparatus that screens

Plaintiff for "detachment from reality" monitored him for approximately one year while the testimonial record made the resulting injury observable. TAC ¶ 311(a), (d).

69. The same passage's remaining premises answer themselves from the pleading. The "undescribed third-parties" of the motion's telling, ECF 70-1 at 40, are neither unnamed nor undescribed. The Complaint names the undisclosed telemetry subprocessor, Datadog, Inc., and its affiliate Datadog Israel Ltd. (Israeli Company ID 516464922), and describes them at length: an entire appendix bears the entity's name (Appendix P); an ECF-filed exhibit series holds its patent portfolio (the L-series); the body pleads the Data Processing Addendum subprocessor-inheritance chain through which the affiliate reaches customer data; and a Rule 19(c) statement identifies Datadog, Inc. by name as a party whose joinder may be required. TAC ¶¶ 5–6, 38–39, 84, 136. The memorandum does not mention Datadog once. That same unread record converts the passage's "worldwide user bases" premise from a defense into a pleaded fact. Plaintiff does not dispute that the architecture is deployed worldwide; he pleads it, and the record establishes it three ways: the patent family the subprocessor's affiliate holds, claiming every primitive of real-time, per-user observation and intervention (future prediction, pivoting, redaction, live coding); the leaked source code demonstrating those primitives deployed, as literal identifiers, in the shipping product; and the per-account mechanism that operates them, the GrowthBook flag `tengu_log_datadog_events: True`, force-enabled against Plaintiff's own account identifier and confirmed at three independent evidentiary layers. TAC ¶¶ 5–7 (Findings NF-47, NF-146); §§ V.B–C, *supra* (the same instrumentality carrying the conspiracy and enterprise showings). On that record, worldwide deployment is not evidence that no individual was targeted. The motion's incredulity assumes that targeting one user requires a company-wide policy aimed at him; the pleaded architecture requires only a flag keyed to his account, and the record shows that

flag set. The "identity-resolved Growthbook profile" the motion sets aside as "(whatever that means)," ECF 70-1 at 40, is that mechanism: the per-user flag surface of the movants' own subprocessor, defined in Anthropic's own source and captured on the wire as twelve identity attributes, including Plaintiff's account identifier, device identifier, and email address, transmitted on each flag-evaluation request (SC-2, NF-35, NF-47, NF-48), and the motion professes not to recognize it while nowhere denying the subprocessor relationship it rides on. A movant cannot characterize the pleading's named instrumentality as undescribed while declining to speak its name. Conduct left unevaluated is not unintelligible; it is unread, and § II's method here reaches the theory's center.

70. On causation and injury, the motion quotes Paragraph 161 as conceding that the physical sequelae arose from the sedentary demands of litigation. The Complaint pleads those physical manifestations as tracing to the targeted conduct, not merely to the stress of suing; *Spann's* rule against manufacturing injury from the expenditure of litigation resources does not reach injury independently caused by the challenged conduct. That rule is, moreover, misapplied: *Spann v. Colonial Village, Inc.*, 899 F.2d 24, 27 (D.C. Cir. 1990), states an *organizational Article III standing* principle: that a plaintiff "cannot . . . manufacture the injury necessary to maintain a suit" out of its own litigation expenditures, not a tort standard governing the severe-distress element of an emotional-distress claim. A limitation on standing-by-self-inflicted-expenditure supplies no answer to distress the challenged conduct itself caused. The negligent-infliction claim is pleaded in the alternative, as the Complaint expressly frames it: on the special-relationship theory (the psychiatric-monitoring directive language creating an undertaking, *Hedgepeth v. Whitman-Walker Clinic*, 22 A.3d 789, 802 (D.C. 2011) (en banc)) and the zone-of-danger theory, with the Minnesota-law parallels the motion itself acknowledges

(ECF 70-1 at 41–42 nn.28–30). Conforming the physical-sequelae causation at Paragraphs 161 and 331 is a pleading-precision matter, not a ground for dismissal.

N. Plaintiff States a Products-Liability Claim (Count XVIII)

71. The motion argues that Plaintiff's "safer alternative design" theory is speculative and detached from the required elements. ECF 70-1 at 43–45 (citing *Warner Fruehauf Trailer Co. v. Boston and Rollins v. Wackenhut Services*). The theory is neither speculative nor hypothetical, because the safer alternative design is not a proposal — it is the internal build the Defendants already operate. The incorporated record shows that the Defendants maintain and use a materially safer internal configuration while distributing a physically different, deliberately degraded binary to paying customers (Findings SC-8, NF-2, SC-3, NF-17). That single fact answers the design-defect elements at the pleading stage at once: the alternative design exists (the Defendants built it), it is technologically and commercially practicable (the Defendants run it), and the risk-utility balance favors it (the Defendants chose it for themselves). Whether the internal build is ultimately "safer" in the products-liability sense is a merits question; that it is pleaded with a concrete, operating referent defeats the speculation objection. The motion's other two theories are answered on the face of the pleading it cites. The failure-to-warn count identifies the omitted warnings by category, pleads the affirmative representation offered in their place, and pleads that those representations "foreseeably induced reliance and continued use," with proximate cause and damages pleaded in terms. TAC ¶¶ 321, 325–326. The manufacturing-defect count is pleaded in the departure-from-intended-design terms the motion demands: two materially different compiled binaries, the more harmful distributed to customers and the safer retained internally, on District of Columbia authority the motion does not address. TAC ¶ 322. Nor does the count depend on the content of Plaintiff's framework; whether the

internal build incorporates his intellectual property is a discovery question belonging to Count VII, and the design, warning, and manufacturing defects are pleaded independently of it.

VI. THE COMPLAINT DOES NOT ENGAGE IN IMPROPER GROUP PLEADING

72. The motion argues that the Complaint impermissibly "lump[s] all the defendants together." ECF 70-1 at 45 (citing *Toumazou v. Turkish Republic of Northern Cyprus* and *Estate of Mickens v. U.S. Bank*). The record refutes the charge on three levels. First, the incorporated evidence is inherently per-defendant: Anthropic's conduct is proven in its own source code (the E, NF, SC, and SF findings), Apple's in the Floodgate Proxy and Xcode-transmission captures (the F-series), Comcast's in the router, TR-069, and RST-injection captures (the D-series), and OpenAI's in the G-series. The Complaint differentiates conduct defendant by defendant because the evidence does. Second, the Complaint's counts designate their defendants specifically. TAC ¶¶ 256, 262, 272, 285, 289, 317. Third, the motion itself tabulates, in six footnotes, exactly which Defendants each count names and does not name. ECF 70-1 at nn.15, 17, 19, 21, 25, 26. A defendant who can state, count by count, that it is not named has received the fair notice *Toumazou* found absent; the motion's own census refutes its group-pleading argument.

VII. DISMISSAL WITH PREJUDICE IS UNWARRANTED

73. The Corporate Defendants seek dismissal of every count with prejudice, yet brief the futility of amendment nowhere except in the copyright section; and, as shown in § V.E, they get even that one wrong, because a claim-processing precondition curable by registration is the paradigm of a defect dismissed without prejudice. Leave to amend is freely given when justice requires, and dismissal with prejudice is reserved for defects that cannot be cured. The two concessions Plaintiff offers in this opposition (narrow, candid, and directed at genuine legal preconditions) themselves demonstrate that Plaintiff pleads in good faith and cures what needs

curing. To the extent the Court finds any surviving count deficiently pleaded rather than legally barred, the appropriate disposition is leave to amend, not dismissal with prejudice. Nor does the Minnesota dismissal's denial of leave to amend (*supra* § IV ¶ 20 n.1) inform the leave analysis here. That ruling rested on the plaintiff's prior opportunity in a different action, *Ellison*, No. 0:26-cv-02594, ECF No. 27 at 8 n.2 (D. Minn. Aug. 20, 2026), and cabined its sanctions caution to "new actions regarding what he terms the 'Chapter 8 claims'" in the District of Minnesota, *id.* at 8; it speaks to neither this Court's docket nor the distinct claims pleaded here.

VIII. CONCLUSION

74. For the foregoing reasons, Plaintiff respectfully requests that the Court deny the Corporate Defendants' Joint Motion to Dismiss as to Counts I–VII, IX–XIII, and XV–XVIII; that any dismissal of Counts VIII and XIV be without prejudice; and that, should the Court find any surviving count deficiently pleaded, Plaintiff be granted leave to amend.

Respectfully submitted,

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